



File No: EXP202302550

RESOLUTION OF RIGHTS PROCEDURE

Having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Ms. A.A.A. (hereinafter, the claimant) exercised the rights of access and rectification against CHATWITH.IO WORLDWIDE, S.L. (Iuris Marketing S.L.) (hereinafter, the respondent) without her request receiving the legally established response.

The claimant, a lawyer whose personal data is published in the directory ***DIRECTORIO.1, exercised her rights of access and rectification. In response, she was informed that she needed to register in order to proceed with the modification or deletion of the data.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the aforementioned complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The electronic notification was marked as "Expired" as the respondent did not access it. Therefore, it was reiterated by postal mail, being returned to this Agency with the annotation "Returned to origin due to surplus (Not collected at office)."

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claimant's requests were satisfied. Consequently, on April 13, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten working days, they could present any arguments they deemed appropriate, resulting in the expiration of the electronic notification. Therefore, it was published in the Single Edict Board on May 9, 2023, without any response having been received by this Agency.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission for processing of the complaint that gives rise to this procedure, it was forwarded to the respondent for analysis, to respond to this Agency within one month, and to demonstrate that they had provided the claimant with the appropriate response, in the

event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

The result of this transfer did not allow for the understanding that the claimant's requests were satisfied. Consequently, on April 13, 2023, for the purposes provided for in Article 64.2 of the LOPDGDD, the Director of the Spanish Data Protection Agency agreed to admit the complaint for processing. This admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their complaint accepted."

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The clarification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, given that its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that need to be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to commence a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the current procedure, the guarantees and rights of the claimant are duly restored.

III

Rights of individuals regarding the protection of personal data

The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, deletion, opposition, the right to limit processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of access

According to the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

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Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the data controller provides remote access to the data, with the request being deemed attended (although the data subject may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so.

On the other hand, the request will be considered excessive when the affected party chooses a means other than that offered which incurs a disproportionate cost, which must be borne by the affected party. Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others; that is, the right of access will be granted in such a way that it does not affect third-party data.

V

Right of rectification

Article 16 of the GDPR, which regulates the right to rectify inaccurate personal data, establishes the following:

"The data subject shall have the right to obtain from the data controller without undue delay the rectification of inaccurate personal data concerning them. Taking into account the purposes of the processing, the data subject shall have the right to have incomplete personal data completed, including by means of a supplementary statement."

VI

Conclusion

In the case analyzed here, the claimant exercised their rights of access and rectification regulated in Articles 15 and 16 of the GDPR and Articles 13 and 14 of the LOPDGDD.

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Once the established deadline has elapsed according to the aforementioned regulations, your request did not receive the legally required response. The entity being claimed has not attended to the request of the claiming party nor the requirements that have been sent to it by this Agency.

The aforementioned regulations do not allow for the request to be overlooked as if it had not been made, leaving it without the response that those responsible are obliged to issue, even in the event that there are no data of the interested party in the entity's files or even in those cases where the requirements set forth are not met, in which case the recipient of said request is also obliged to require the correction of the observed deficiencies or, if applicable, deny the request with justification indicating the reasons why it is not appropriate to consider the right in question.

Therefore, the request made obliges the responsible party to provide an express response, in any

case, using any means that justifies the receipt of the response.

Given that a copy of the necessary communication that must be directed to the claimant informing them about the decision made regarding the exercise of rights request has not been provided, it is appropriate to uphold the claim that initiated this procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by Ms. A.A.A. considering that the provisions of Articles 12, 15, 16, and 17 of the GDPR have been infringed and to urge CHATWITH.IO WORLDWIDE, S.L. (Iuris Marketing S.L.) with NIF B88184239, to send, within ten working days following the notification of this resolution, to the claiming party a certification addressing the requested rights or denying them with justification indicating the reasons why it is not appropriate to attend to the request, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Ms. A.A.A. and to CHATWITH.IO WORLDWIDE, S.L. (Iuris Marketing S.L.).

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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